

Part 3: Drugs and Cosmetics Rules , 1945

Rule 160B

Title: Conditions for Grant or Renewal of Approval for Testing Ayurvedic, Siddha and Unani Drugs

Jurisdiction: India

Category: Standards

Source Citation: Drugs and Cosmetics Rules, 1945, Rule 160B

Plain English Summary:

Rule 160B specifies the conditions that a laboratory must satisfy before receiving approval to test Ayurvedic, Siddha and Unani drugs and their raw materials. The laboratory must have suitable premises, qualified experts, adequate equipment, recognized pharmacopoeial standards and proper reference samples. Testing must be carried out under the supervision of qualified experts, and the laboratory must maintain accurate testing records and reports.

The Exact Legal Text:

160B. Form in which approval to be granted for carrying out tests on Ayurvedic, Siddha and Unani drugs on behalf of licensees for manufacture of Ayurvedic, Siddha and Unani drugs and conditions for grant or renewal of such approval.—

(1) Approval for carrying out such tests of identity, purity, quality and strength of Ayurvedic, Siddha and Unani drugs as may be required under the provisions of these rules, on behalf of licensee for manufacture of Ayurvedic, Siddha and Unani drugs shall be granted in Form 48.

(1A) The licence shall be issued within a period of two months, from the date of receipt of the application or from the date of fulfillment of shortcomings, if any, as the case may be, communicated by the licensing authority.

(2) Before approval in Form 48 is granted or renewed, the following conditions shall be complied with by the applicants, namely:—

(i) The premises where the tests are carried out shall be well lighted and properly ventilated except where the nature of tests of any Ayurvedic, Siddha and Unani drug warrants otherwise. Wherever necessary, the premises shall be air-conditioned so as to maintain the accuracy and functioning of laboratory instruments or to enable the performance of special tests such as sterility tests and microbiological tests.

(ii)(a) The applicant shall provide adequate space having regard to the nature and number of samples of drugs proposed to be tested:

Provided that the approving authority shall determine from time to time whether the space provided continues to be adequate.

Provided further that separate section shall be provided for Chemistry, Pharmacognosy, Ayurveda, Siddha and Unani, Microbiology, Sample Room and Office-cum-Record Room, with proper partitions and minimum required area is 800 sq. ft.

(b) The applicant shall provide a list of persons who may be employed with him as experts, such as Chemist, Botanist and expert in Ayurveda, Siddha or Unani or Pharmacist who shall possess a degree in Chemistry, Botany, Ayurveda, Siddha or Unani or Bachelor in Pharmacy from a recognized University or equivalent, with experience for two years for carrying out tests or analysis as per the Ayurvedic, Siddha and Unani pharmacopoeias.

(c) The applicant shall provide adequate equipment essential for carrying out tests for identity, purity, quality and strength of Ayurvedic, Siddha and Unani drugs as per pharmacopoeial standards or other available standards.

(3) The applicant shall provide and maintain suitable equipment having regard to the nature and number of samples of Ayurvedic, Siddha and Unani drugs intended to be tested which shall be adequate in the opinion of the approving authority.

(4) The testing of Ayurvedic, Siddha and Unani drugs, as the case may be, for identity, purity, quality and strength shall be carried out under the active direction of one of the experts stated in clause (b) of sub-rule (2) who shall be the person-in-charge of testing and shall be held responsible for the reports of test issued by the applicant.

(5) The testing of Ayurvedic, Siddha and Unani drugs, as the case may be, for identity, purity, quality and strength shall be carried out by persons whose qualifications and experience of testing are adequate as stated in clause (b) of sub-rule (2).

(6) The applicant shall provide books of standard recognized under the provisions of the Act and the rules made thereunder and such books of reference as may be required in connection with the testing or analysis of the products for the testing of which approval is applied for.

(7) The applicant shall provide list of standard Ayurvedic, Siddha and Unani drugs with reference samples recognized under the provisions of the Act and rules made thereunder and such reference samples kept in the laboratory may be required in connection with the testing or analysis of the products of which approval is applied for.

Keywords/Triggers:

Rule 160B, Form 48 approval, Ayurvedic testing laboratory, qualified testing experts, laboratory equipment, pharmacopoeial standards, reference samples, identity purity quality strength testing

Rule 160C

Title: Duration of Approval

Jurisdiction: India

Category: Standards

Source Citation: Drugs and Cosmetics Rules, 1945, Rule 160C

Plain English Summary:

Rule 160C specifies the period for which approval granted to an Ayurvedic, Siddha or Unani testing institution remains valid. The approval is generally valid for three years from the date of grant or renewal, unless it is suspended or withdrawn earlier. The rule also explains the conditions under which approval continues during the renewal process.

The Exact Legal Text:

160C. Duration of approval.—An approval granted in Form 41 or renewed in Form 42 unless sooner suspended or withdrawn, shall be valid for a period of three years from the date on which it is granted or renewed:

Provided that if an application for the renewal of an approval in Form 40 is made before its expiry or if the application is made within six months of its expiry after the payment of the additional inspection fee, the approval shall continue to be in force until orders to the contrary are passed on the application and the approval shall be deemed to have expired if the application for renewal is not made within six months of expiry.

Keywords/Triggers:

Rule 160C, duration of approval, Ayurvedic laboratory approval, Form 41, Form 42, approval renewal, testing institution validity, inspection fee